

Merrett v Babb

[\[2001\] EWCA Civ 214](#)

Negligence in valuations and surveys

The defendant, a chartered surveyor, was employed by a firm of valuers (owned by an individual) as manager of one of the firm's branch offices. In the course of his work the defendant carried out a mortgage valuation for a building society, signing the valuation report in his own name and stating his professional qualifications. By the time the house purchaser sought to bring an action for negligence on the basis of this report the owner of the firm had become bankrupt and the firm's professional indemnity insurance policy had been cancelled. The firm was therefore not worth suing.

The Court of Appeal held by a majority that the purchaser was entitled to recover damages from the defendant personally, despite the fact that the purchaser had not actually seen the valuer's report and was unaware, at the time of purchase, of his identity.